

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Santosh Prakash	Team: Squad #08	CCRB Case #: 201708932	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 10/21/2017 11:59 PM	Location of Incident: Nostrand Avenue and Martense Street	18 Mo. SOL 4/21/2019	Precinct: 67		
Date/Time CV Reported Sun, 10/22/2017 12:01 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/26/2017 11:16 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Alessandro Negri	16728	955255	SRG 3
2. POM Tony Ip	01891	949749	SRG 3

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Viet Cao	01925	928012	SRG 3

Officer(s)	Allegation	Investigator Recommendation
A . POM Alessandro Negri	Abuse: Police Officer Alessandro Negri frisked § 87(2)(b)	A . Unsubstantiated
B . POM Tony Ip	Abuse: Police Officer Tony Ip frisked § 87(2)(b)	B . Substantiated
C . POM Alessandro Negri	Abuse: Police Officer Alessandro Negri searched § 87(2)(b)	C . Substantiated
D . POM Tony Ip	Abuse: Police Officer Tony Ip searched § 87(2)(b)	D . Substantiated

Case Summary

On October 21, 2017, at about 11:00 pm, at Nostrand Avenue and Martense Street in Brooklyn, PO Alessandro Negri and PO Tony Ip (of Strategic Resource Group) stopped § 87(2)(b) for carrying an open container. Upon engaging him, PO Negri and PO Ip allegedly frisked § 87(2)(b) (**Allegation A: Abuse of Authority – Frisk: Unsubstantiated, Allegation B: Abuse of Authority – Frisk: Substantiated**). An officer identified as PO Negri then searched § 87(2)(b) (**Allegation C: Abuse of Authority – Search: Substantiated**). Tensions escalated as the stop progressed, and § 87(2)(b) was eventually handcuffed by PO Ip. After restraining him, PO Ip frisked (subsumed under **Allegation B**), and searched § 87(2)(b) (**Allegation D: Abuse of Authority – Search: Substantiated**). § 87(2)(b) was ultimately issued summonses for § 87(2)(b), and released from the scene.

There is no video footage of the incident.

Findings and Recommendations

Allegation A: Police Officer Alessandro Negri frisked § 87(2)(b)

Allegation B: Police Officer Tony Ip frisked § 87(2)(b)

Allegation C: Police Officer Alessandro Negri searched § 87(2)(b)

Allegation D: Police Officer Tony Ip searched § 87(2)(b) .

§ 87(2)(g)

§ 87(2)(b) testified as follows. On October 21, 2017, at about 11:00 pm, shortly after returning home from work and running some errands, § 87(2)(b) – who was wearing a black hoodie and sweatpants – visited a liquor store on Nostrand Avenue and purchased two mini vodka bottles. Consuming one of them inside the store, he slipped both the empty and the unopened bottle into a pants pocket and proceeded to walk back home to Martense Street a few blocks away, where he was stopped by two Asian males in plainclothes soon after turning the corner. § 87(2)(b) believed that one officer was bald (identified by the investigation as PO Tony Ip) and that the other had black hair (identified by the investigation as Sgt. Viet Cao). Because he was on the phone, § 87(2)(b) initially ignored the officers when they called out to him from an unmarked Chevy. But when he heard them approach from behind, § 87(2)(b) stopped to see what they wanted. (BR01)

Flanking him on each side, the officers immediately asked § 87(2)(b) if he had any weapons. When § 87(2)(b) asked why, the officers jointly frisked him, patting down his waist and torso. One of the officers – § 87(2)(b) did not recall who – then went into his pants pockets and removed his wallet, his keys, and the two liquor bottles. Without asking him any further questions or providing any additional information, the officers then handcuffed § 87(2)(b) – who had not been aggressive or combative – and walked him back to the Chevy at the corner. PO Ip held § 87(2)(b) against the Chevy for approximately fifteen minutes, after which he was released with two summonses, one for § 87(2)(b) and one for § 87(2)(b). § 87(2)(b) believed that the summonses were issued to him by a white male officer (identified by the

investigation as PO Alessandro Negri) who had since arrived on scene. The officers never questioned him, said nothing about alcohol, and did not otherwise explain why he had been stopped and detained. § 87(2)(b) denied drinking from either bottle after he exited the liquor store and denied acting disorderly in any manner. (BR01)

Though § 87(2)(b) believed that it was only PO Ip and Sgt. Cao who initiated the encounter and stated that multiple units responded to the scene after he was handcuffed, he was unable to describe these responding officers and only remembered PO Negri because he wrote the summonses. (BR01)

The investigation was unable to find any evidence of other units at the scene and ultimately determined that PO Negri, PO Ip, and Sgt. Cao, who were patrolling the area together in the same vehicle, were the only officers there. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

PO Negri stated that he was driving down Martense Street when he noticed § 87(2)(b) on the sidewalk drinking from a small bottle. § 87(2)(b) was about 15 feet away but PO Negri could make out clearly from the shape of the container that he was holding an mini liquor bottle, especially because the area was well-lit by a NYPD floodlight at the corner. PO Negri exited the car with PO Ip and Sgt. Cao and directed § 87(2)(b) to come over. § 87(2)(b) complied. But as he walked, he put both of his hands – and the bottle he was holding – into his pants pockets. When § 87(2)(b) reached the officers, PO Negri instructed § 87(2)(b) to take his hands out his pockets. Because § 87(2)(b) said “what” instead of doing so immediately, PO Negri grasped his wrists and pulled both hands out. This revealed that § 87(2)(b) had the bottle, along with a small plastic bag, clutched in one hand. PO Negri stated that he acted as he did out of caution for the officers’ safety, stating: “Any time you are dealing with somebody, if they got hands in pockets, I don’t know what is in his pockets – I want to make sure I can see his hands.” Upon confirming that the container was a nearly empty vodka bottle, PO Negri briefly felt the plastic bag from outside to ensure it contained nothing dangerous. Because he only felt more small bottles inside, he never opened the bag to see what was inside. (BR02)

PO Negri advised § 87(2)(b) that he was going to be issued an open container summons and asked him for identification. § 87(2)(b) provided his driver’s license, but quickly became increasingly irate and belligerent. As PO Negri conducted checks on his phone, § 87(2)(b) loudly cursed at the officers and rejected their legal authority, claiming that they had no jurisdiction over him because he was a state licensed EMT. § 87(2)(b) refused to calm down. And as PO Negri waited for the search results on his phone, § 87(2)(b) – still yelling – suddenly walked off the sidewalk and into the middle of the street. PO Negri pulled § 87(2)(b) back onto the sidewalk and instructed him to stand still. However, § 87(2)(b) walked back into the street two more times, forcing vehicular traffic to stop and navigate around him. At this point, due to § 87(2)(b)’s behavior, PO Negri determined that he needed to be restrained with handcuffs for everyone’s safety. PO Negri thus pulled him back from the street to the rear of the Chevy, briefly frisked him by patting down his pants pockets and waistband, and then rear-cuffed him. PO Ip then held him against the trunk until PO Negri finished writing the open container summons. After conferring

with Sgt. Cao, PO Negri also issued § 87(2)(b) a disorderly conduct summons for obstructing vehicle traffic. PO Negri denied searching § 87(2)(b) at any point. (BR02)

PO Ip also testified that § 87(2)(b) was sipping from mini bottle, but his account was otherwise at odds with PO Negri's. PO Ip stated that § 87(2)(b) put the bottle into his left pant pocket as he walked over, but that the neck of the bottle protruded out in plain view. When § 87(2)(b) reached them, he said he had not been drinking. Because the bottle was visible, either PO Ip or PO Negri – he did not recall who – thus pulled it out of § 87(2)(b)'s pocket, finding it open and nearly empty. The officers did not ask § 87(2)(b) to display his hands prior to doing so. PO Ip did not recall whether they asked § 87(2)(b) what was in the bottle before pulling it out. (BR03)

Regarding § 87(2)(b)'s subsequent disorderliness, PO Ip was entirely consistent with PO Negri. However, PO Ip stated that he, not PO Negri, decided to handcuff § 87(2)(b) for everyone's safety. After doing so, PO Ip frisked § 87(2)(b)'s pants pockets for weapons, at which time he felt a "sharp" object inside one of the pockets. PO Ip stated that the object felt like they were keys. Additionally, he neither saw nor felt anything else to indicate a knife or other concealed weapon. But because it was "pointy," PO Ip went into the pocket and removed the object, to "make sure there was no knife attached to the key." The object was in fact just a loose set of keys, without keychain. PO Ip denied removing anything else, or searching other pockets, or opening the bag § 87(2)(b) was carrying. (BR03)

Sgt. Cao recalled very little of the incident, including whether or not PO Ip was present at the scene. § 87(2)(g), he could not recall what § 87(2)(b) did with the bottle at the outset of the stop, whether he was frisked or searched at any point during the encounter, or even if there was any physical contact between himself and § 87(2)(b) (BR04)

PO Negri's summonses to § 87(2)(b) – for violating Administrative Code 10-125-b (the city's open container statute) and for disorderly conduct – were consistent with what he and PO Ip testified to, as were the officers' memo book entries. (BR05-BR08) Per the New York County Criminal Court Summons Clerk, both summonses have since been sealed.

A person violates Administrative Code 10-125(b) when they intend to drink or consume an open container containing any liquid intended for human consumption containing more than one-half of one percent (.005) of alcohol by volume in any public place (excluding duly permitted public functions). An officer issuing an open container summons must make non-hearsay allegations to this effect, on the face of the summons or in a supporting deposition, establishing each element of the offense. (BR09)

Under Patrol Guide (P.G.) Procedure 212-11, an officer may frisk an individual for "a deadly weapon ...instrument, article or substance readily capable of causing serious physical injury and of a sort not ordinarily carried in public places by law-abiding persons." Per P.G. 212-11, a frisk is "authorized when [the officer] reasonably suspects the person is armed and dangerous" or if there is reasonable suspicion "that the person has committed, is committing, or is about to commit a violent crime" or "when the officer observes something on the person that [they] reasonably suspect is a weapon." "A frisk may not be conducted to discover evidence or the proceeds or

instrumentalities of a crime.” (P.G. 211-11; BR10) If an officer then makes contact with what he suspects is a weapon, a localized search to remove the object may be justified as a protective measure, but only if there is “proof of a describable object or of describable conduct providing a reasonable basis for the officer’s belief.” (People v Prochilo, 41 NY2d 759 [1977]; BR11)

A full-blown search, however, is barred unless conducted as incident to an “actual arrest” – “not just to probable cause that might have led to an arrest, but did not.” (BR12) The application of handcuffs on a temporarily detained person is not necessarily dispositive of whether the detention was elevated into an arrest. (People v Allen, 73 NY2d 378 [1989]; BR13)

Similarly, an officer may also order an individual to remove their hands from their pockets to assure safety. (People v Giles, 23 Misc 3d 1106(A) [Sup Ct, NY County 2009]; BR14) If the individual refuses to comply with the order, an officer may forcibly remove their hands as a protective measure but – as with the justifying conditions for frisks – only if the facts are indicative of a weapon in the pocket. Specifically, New York courts have found the action reasonable when the possible presence of a weapon is inferable by the physical dynamics of the encounter, or by the context of the ongoing police inquiry, for example when: in People v Samuels, an individual thought to be carrying a gun, approached soon after purchasing a holster, failed to comply when told to remove his hand from his pockets (People v Samuels, 50 NY2d 1035 [1980]; BR15); or in People v Oeller, where a suspected drug dealer in a drug-prone area, determined to be reasonably regarded as possibly armed on the narcotics factor alone, put his hands in his pockets when officers stopped him (People v Oeller, 595 NYS 2d192 [1993]; BR16); and in People v Oppedisano, when an occupant of a drug-associated residence, upon opening the door to officers executing a search warrant, failed to identify himself when asked, then refused to remove his hands from his pockets, and instead “took a step back.” (People v Oppedisano, 176 AD2d 667 [1st Dept 1991]; BR17) In each of these decisions, forcible removal was justified either because the subject’s refusal was also accompanied by furtive movement, “potentially menacing” conduct, or similarly concerning “stance” (as specifically noted in Oppedisano), or because the context involved a narcotics transaction (as in Oeller). Consequently, in People v Giles – where the subject actually complied when told to remove his hands – the court concluded that even the verbal order on its own was unlawful because there was no (credible articulation of) a “physical manifestation of a weapon” in pockets, no indicative movements or conduct, no narcotics-related activity, and “nothing in the surrounding circumstances” to justify the intrusion. “[M]ere placement of one’s hand in one’s pocket does not create a suspicion that an individual is armed.” (People v Giles, 23 Misc 3d 1106(A) [Sup Ct, NY County 2009]; BR13)

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

It is therefore recommended that **Allegation A** be closed as **Unsubstantiated** and that **Allegations B, C, and D** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to four prior CCRB complaints; § 87(2)(b)
[REDACTED]
- PO Negri has been a member of service for 4 years: he has been a subject in two prior complaints, in two allegations; none were substantiated § 87(2)(g)
[REDACTED]
- PO Ip has been a member of service for 7 years: he has been a subject in three prior complaints, on four allegations; none were substantiated § 87(2)(g)
[REDACTED].

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation. Notices of claim results were negative. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED].

Squad No.: 08

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date